

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Connie Higgins-Beer	Team: Team # 2	CCRB Case #: 200612613	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 09/22/2006 2:30 PM	Location of Incident: between Powell Avenue and Zerega Avenue	18 Mo. SOL 3/22/2008	Precinct: 43
Date/Time CV Reported Fri, 09/22/2006 3:21 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/22/2006 3:21 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rodriguez	14441	926015	PBBX TF

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Discourtesy: Officer Robert Rodriguez spoke obscenely and/or rudely to § 87(2)(b)	A . Complainant Uncooperative

Synopsis

§ 87(2)(b) filed a complaint with the CCRB by phone on September 22, 2006. She stated that at 2:30pm the same day, she stopped her car at a red light. The man driving the van in front of her was talking on his cell phone and did not move his car when the light turned green. § 87(2)(b) honked, then waited as the light turned red and then green again, at which point she yelled at the man to pull to the side so she could pass him. He told her to go around him. When the light turned red again, § 87(2)(b) signaled left, pulled her car around the van, and waited for the light to turn green.

PO Robert Rodriguez, identified from summonses issued to § 87(2)(b) during the incident, came from Zerega Avenue and instructed her to turn right on the red light. She described PO Rodriguez as a Latino male, 5'8"- 5'9," wearing sunglasses, "well-built," and without any facial hair that she could recall. § 87(2)(b) turned right as PO Rodriguez instructed, and he then asked for her license and registration. She asked him what the problem was, but he didn't tell her and just repeated that she provide her license, registration, and insurance card. All of her information was in a wallet that her § 87(2)(b) who is an officer, had given to her. When the wallet is open, a small badge is visible; however, § 87(2)(b) stated that she was not trying to show PO Rodriguez the badge, but just taking out her information.

Before § 87(2)(b) could give PO Rodriguez the information from the wallet, he said, "I didn't ask you for that, put that shit away," in reference to the badge. § 87(2)(b) replied, "I'm not taking it out to show you - this is where my information is at." PO Rodriguez kept saying, "Put that shit away. I don't want to see that shit." § 87(2)(b) said that she couldn't put the wallet away because that was where her information was. She pulled the information out of the wallet and handed it to him. § 87(2)(b) stated that in her nervousness, she did not realize she had handed him her October registration, which she had obtained because her insurance cycle was expiring at the end of September.

PO Rodriguez went back to his car and kept § 87(2)(b) waiting for over 45 minutes. She saw that he was talking on his cell phone about half of the time and appeared to be laughing and joking. He then came back and gave her four tickets - § 87(2)(b)

Before she could speak to PO Rodriguez, he went to his car and drove away. After he turned the corner, § 87(2)(b) read the tickets. She disagreed with the tickets and maintained that she turned right on red because PO Rodriguez instructed her to, that she did signal, and that she did have her insurance card for September with her, only she handed him the wrong card by accident.

The investigator obtained a phone statement from § 87(2)(b) on October 3, 2006. During the conversation, the investigator explained and offered investigation and mediation. § 87(2)(b) wanted to think about it before making a decision, and the investigator offered to mail her information on mediation. § 87(2)(b) agreed to call with a decision by October 13, 2006. Having not heard from § 87(2)(b) the investigator called her cell phone on October 13 and left a message on her personalized voicemail asking that she call by October 18 to let the investigator know what her decision was. The investigator stated at this time that it was necessary for § 87(2)(b) to cooperate in order to proceed, and that if she did not contact the CCRB it was likely her complaint would be closed. As of October 20, 2006, § 87(2)(b) has not contacted the investigator by phone or mail, and the mediation materials have not been returned as undeliverable. On October 18, 2006, the investigator searched BADS for § 87(2)(b) since October 3, 2006. No results were found for § 87(2)(b) § 87(2)(g)

§ 87(2)(g) it is recommended that this case be closed as complainant uncooperative.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: